

2013 WL 4509576 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Eric ECHEVARRIA, Plaintiff,

v.

CITY OF NEW YORK, the New York City Police Department, P.O. Rostisla Kipervaser, Deputy
Inspector **Christopher McCormack**, CPT. Martine N. Materasso and Officer(s) John and James
Doe, names being fictitious and meant to designate additional offending officers, Defendants.

No. 0305088-2013.
August 15, 2013.

Summons

[Jonathan L. Gleit](#), Esq., Attorney for Plaintiff, 888 Grand Concourse, Suite 1-O, Bronx, NY 10451, (718) 742-0200.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint to be assessed by the Court.

Dated: Bronx, N.Y. August 15, 2013

By: **JONATHAN L. GLEIT, ESQ.**

Attorney for Plaintiff

888 Grand Concourse

Suite 1-O

Bronx, NY 10451

(718) 742-0200

VERIFIED COMPLAINT

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF ERIC ECHEVARRIA

1. At the time of the commencement of this action, Plaintiff ERIC ECHEVARRIA was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about May 25, 2012, P.O. ROSTISLA KIPERVASER was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about May 25, 2012, at approximately 5 P.M., P.O. ROSTISLA KIPERVASER was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about May 25, 2012, DEPUTY INSPECTOR **CHRISTOPHER McCORMACK** was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about May 25, 2012, at approximately 5 P.M., DEPUTY INSPECTOR **CHRISTOPHER McCORMACK** was working and acting within the scope of his employment as a Police Officer, and under the color of law.

**9. That on and about May 25, 2012, Cpt. MARTINE N. MATERASSO was employed
by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.**

10. That on and about May 25, 2012, at approximately 5 P.M., Cpt. MARTINE N. MATERASSO was working and acting within the scope of his employment as a Police Officer, and under the color of law.
11. That on and about May 25, 2012, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
12. That on and about May 25, 2012 at approximately 5 P.M., OFFICER[S]JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
13. That on or about May 25, 2012 at approximately 5 P.M., at Apartment 4D of 400 East 147th Street, Bronx, New York, the plaintiff ERIC ECHEVARRIA was improperly arrested, assaulted and confined without proper authority or justification, having no reason in law or in fact to arrest, assault or confine ERIC ECHEVARRIA.
14. That the defendants, their agents, servants and/or employees arrested, assaulted and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.
15. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against her, when they knew, or in the exercise of reasonable care, should have known they were false.
16. That at the time and place herein alleged, the defendants, their agents, servants and/or employees utilized excessive, unnecessary and unjustified force against plaintiff.
17. That the defendants P.O. ROSTISLA KIPERVASER, DEPUTY INSPECTOR **CHRISTOPHER McCORMACK**, Cpt. MARTINE N. MATERASSO and OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false

information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

18. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and threaten his liberty after they knew, or should have known, he was innocent of all charges being alleged against him.

19. That the defendants, their agents, servants and/or employees unlawfully arrested, assaulted, detained, imprisoned and searched the plaintiff and took his confinement thereby causing freight, shock, emotional distress and physical consequences.

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively male citizens of a racial minority, and engaging in a policy and procedure of arresting persons for such charges as resisting arrest, obstructing governmental administration and disorderly conduct in an ill fated attempt at justifying their wrongful actions and unnecessary unjustified excessive force and without individualized reasonable or probable cause of such charges for such nefarious, unlawful reasons, and repeatedly providing false information and testimony without reprimand to the offending officers. That said illegal and unlawful arrests of innocent persons without reasonable or probable cause and utilizing unnecessary unjustified excessive force, are a matter of policy and record and openly acknowledged or known by the defendants, and evidenced by the large amount of dismissals of criminal charges under similar circumstances.

21. Further, officers of the New York City Police Department, and especially and specifically officers of the 40th Precinct routinely engage in the use of practices such as to justify utilizing unnecessary unjustified excessive force and testify falsely so often that such conduct is considered routine by the offending officers, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs and by specifically engaging in said conduct specifically with regard to plaintiff herein. Furthermore, defendants own internal documents and those of this and other courts substantiate this as a policy and procedure of the CITY OF NEW YORK.

22. Moreover, patterns of such the aforesaid conduct of arresting persons for such charges as disorderly conduct, obstructing governmental administration and/or resisting arrest in an ill fated attempt at justifying defendants' unnecessary unjustified excessive force and without individualized reasonable or probable cause of such charges is demonstrated because multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a sample and small example: ESHAWN SUTTON was wrongfully subject to similar charges after being assaulted by P.O. JOEY East 165th Street, Bronx, New York; ARAMIS RODRIGUEZ was wrongfully subject to similar charges after being assaulted by Det. LISANDRO RIVERA on or about April 10, 2009 at approximately 2:30 P.M., at the southeast corner of Faile Street and Westchester Ave., Bronx, New York; JUAN VALDIVIA was wrongfully subject to similar charges after being assaulted by P.O. JAIRO GONZALEZARANGO and P.O. ROBERT GAZSY on or about January 16, 2010 at approximately 7:15 P.M., in front of 106 West 143rd Street, New York, New York; BENETIO MYTON was wrongfully subject to similar charges after being assaulted by P.O. ELEANOR WALSH and P.O. BRANDON RAVELO on or about March 30, 2010 at approximately 8:45 P.M., at or near the intersection of East 220th Street and White Plains Road, Bronx, New York and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OF NEW YORK agencies and departments.

23. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

24. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within plaintiff of rights secured to him by the Constitution and laws of the United States,

including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under [Title 42 U.S.C. 1983, et seq.](#)

25. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

26. That as a result of the foregoing, the plaintiff ERIC ECHEVARRIA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF ERIC ECHEVARRIA

27. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 26 as though more fully set forth herein.

28. That on or about August 15, 2012, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

29. The May 20, 2013 the plaintiff notified the CITY OF NEW YORK, in writing, that plaintiff was unable to attend a General Municipal Law §50h hearing on May 21, 2013, and the CITY OF NEW YORK failed to reschedule said hearing prior to time that plaintiff was required to commence the within action.

30. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

31. That on or about May 25, 2012 at approximately 5 P.M., at Apartment 4D of 400 East 147th Street, Bronx, New York, the plaintiff ERIC ECHEVARRIA was improperly arrested and confined without proper authority or justification, having no reason in law or in fact to arrest or confine ERIC ECHEVARRIA.

32. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

33. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

34. That the defendants P.O. ROSTISLA KIPERVASER, DEPUTY INSPECTOR **CHRISTOPHER McCORMACK**, Cpt. MARTINE N. MATERASSO and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

35. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of her unlawful confinement, thereby

36. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

37. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

38. That as a result of the foregoing, the plaintiff ERIC ECHEVARRIA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF ERIC ECHEVARRIA

39. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 38 as though more fully set forth herein.

40. That the defendants assaulted and utilized unnecessary, unjustified and excessive force during the arrest of the plaintiff.

41. That as a result of defendant's use of excessive force, plaintiff was thereby caused freight, shock, emotional distress and physical consequences

42. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

43. That this cause of action falls within one or more of the exceptions as set forth in 44. That as a result of the foregoing, the plaintiff ERIC ECHEVARRIA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF ERIC ECHEVARRIA

45. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 44 as though more fully set forth herein.

46. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

47. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper conducting of the arrest of individuals, the proper searches of persons, and in the proper utilization of force.

48. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff ERIC ECHEVARRIA was denied freedom and rights under the federal and state constitutions and received great and severe was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

49. That this cause of action falls within one or more of the exceptions as set forth in [CPLR Section 1602](#).

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third and Fourth Causes of Action, inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated:Bronx, N.Y. August 15, 2013

By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiff

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